

**FORM 70 R
REGISTRAR'S CERTIFICATE
(DIVORCE ACTION)**

(General heading)

(Court seal)

REGISTRAR'S CERTIFICATE

(Instructions: If appropriate box at left cannot be checked, check box in right margin and describe deficiency in red by the box.)

The Registrar at _____ certifies that:

1.	PRELIMINARY	Deficiency
(a)	☐ The Respondent has been noted in default.	1(a) ☐
(b)	☐ No Answer has been filed by the Respondent.	1(b) ☐
	☐ The Respondent's Answer has been withdrawn.	
	☐ The Respondent's Answer has been struck out.	
(c)	☐ A Central Divorce Registry clearance certificate has been received.	1(c) ☐
2.	SERVICE	
(a)	☐ Service is not required because the spouses have filed a joint petition.	2(a) ☐
	☐ The Affidavit of Service has been filed.	
	☐ A signed acknowledgement of services has been filed.	
(b)	☐ The Respondent was served personally at _____ (address)	2(b) ☐
	☐ The Respondent was served by substituted service.	
3.	AFFIDAVITS	
(a)	☐ An affidavit of the Petitioner has been filed on the motion.	3(a) ☐
(b)	☐ An affidavit of the Respondent has been filed on the motion.	3(b) ☐
(c)	☐ An affidavit of _____ has been on the motion.	3(c) ☐
(d)	☐ The Notice of Motion indicates that oral evidence will be presented.	3(d) ☐
4.	CLAIM FOR RELIEF	
(a)	☐ The Petition contains only a claim for divorce.	4(a) ☐
	☐ The Petition contains a claim for relief under an Act, other than a divorce, and refers to the Act in each claim.	
(b)	☐ The Petition contains a claim for support or a division of property and sets out the nature and amount of relief	

- claimed and the amount of support claimed for each dependent. 4(b) 🍏
- (c) 🍏 The Petition contains a claim for inclusion of terms of a separation agreement of previous court order and refers to the specific provisions to be included. 4(c) 🍏
5. **GROUND FOR DIVORCE**
The Petition claims divorce on this ground of
- (a) 🍏 separation since _____, and the Petitioner's Affidavit was sworn at least one year after that date. 5(a) 🍏
- (b) 🍏 adultery 5(b) 🍏
- (c) 🍏 cruelty 5(c) 🍏
6. **PROOF OF MARRIAGE**
- (a) 🍏 A certificate of marriage or equivalent thereof from another jurisdiction has been filed, and particulars correspond to those in the Petition. 6(a) 🍏
- (b) 🍏 The Petition states that it is impossible to obtain a certificate of marriage or equivalent thereof from another jurisdiction, and the Affidavit gives the date and place of marriage. 6(b) 🍏
7. **RESIDENCE**
- 🍏 The Petition indicates that the 7 🍏
- 🍏 petitioner
- 🍏 respondent
- has resided in Prince Edward Island since _____, a period of at least one year before the Petition was issued.
8. **CHILDREN**
- (a) 🍏 There are children of the marriage.
- 🍏 There are no children of the marriage.
- (b) 🍏 The Director of Child Protection has not intervened. 8(b) 🍏
- 🍏 The Family Court Counsellor has filed a report.
- 🍏 There has been no child advocate appointed.
- 🍏 There has been no counsel appointed for the child.
- 🍏 The Office of the Children's Lawyer has intervened.
9. **OTHER COURT PROCEEDINGS OR ORDERS**
- (a) 🍏 Family law proceedings or orders have been identified 9(a) 🍏
- (b) 🍏 Criminal proceedings or orders have been identified 9(b) 🍏
- (c) 🍏 Civil protection proceedings or orders have been identified 9(c) 🍏
10. **NOTICE TO PETITIONER**
- 🍏 The Petitioner has been informed of any deficiencies noted on this certificate and has requested the motion be submitted despite them. 10 🍏

DATE: _____

Issued by: _____
Registrar